Mutual Non-Disclosure Agreement

Using this Mutual Non-Disclosure Agreement

This Mutual Non-Disclosure Agreement (the "MNDA") consists of: (1) this Cover Page ("**Cover Page**") and (2) the Common Paper Mutual NDA Standard Terms Version 1.0 ("**Standard Terms**") identical to those posted at commonpaper.com/standards/mutual-nda/1.0. Any modifications of the Standard Terms should be made on the Cover Page, which will control over conflicts with the Standard Terms.

Purpose

The parties agree to evaluate a proposed commercial collaboration, exchange relevant confidential information, and protect each disclosure under these terms.

collaboration, exchange relevant confidential information, and protect each disclosure under these terms. The parties agree to evaluate a proposed commercial

disclosure under these terms. The parties agree to evaluate a proposed commercial collaboration, exchange relevant confidential information, and protect each

Effective Date

October 22, 2026

MNDA Term

1 year from the Effective Date.

Term of Confidentiality

1 year from the Effective Date, but in the case of trade secrets until Confidential Information is no longer considered a trade secret under applicable laws.

Governing Law & Jurisdiction

Governing Law: [Governing Law]

Jurisdiction: [Jurisdiction]

MNDA Modifications

The parties further agree to document and review the following negotiated modification and maintain a complete written record of their mutual understanding.

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By signing this Cover Page, each party agrees to enter into this MNDA as of the Effective Date.

	PARTY 1	**PARTY 2**
Signature		
Print Name		
Title		
Company		
Notice Address		
Date		

Standard Terms

Introduction. This Mutual Non-Disclosure Agreement (which incorporates these Standard Terms and the Cover Page (defined below)) ("**MNDA**") allows each party ("**Disclosing Party**") to disclose or make available information in connection with the **The parties agree to evaluate a proposed commercial collaboration, exchange relevant confidential information, and protect each disclosure under these terms.

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Use and Protection of Confidential Information. The Receiving Party shall: (a) use Confidential Information solely for the **The parties agree to evaluate a proposed commercial collaboration, exchange relevant confidential information, and protect each disclosure under these terms.

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Exceptions. The Receiving Party's obligations in this MNDA do not apply to information that it can demonstrate: (a) is or becomes publicly available through no fault of the Receiving Party; (b) it rightfully knew or possessed prior to receipt from the Disclosing Party without confidentiality restrictions; (c) it rightfully obtained from a third party without confidentiality restrictions; or (d) it independently developed without using or referencing the Confidential Information.

Disclosures Required by Law. The Receiving Party may disclose Confidential Information to the extent required by law, regulation or regulatory authority, subpoena or court order, provided (to the extent legally permitted) it provides the Disclosing Party reasonable advance notice of the required disclosure and reasonably cooperates, at the Disclosing Party's expense, with the Disclosing Party's efforts to obtain confidential treatment for the Confidential Information.

Term and Termination. This MNDA commences on the **October 22, 2026** and expires at the end of the **MNDA Term (1 year from the Effective Date)**. Either party may terminate this MNDA for any or no reason upon written notice to the other party. The Receiving Party's obligations relating to Confidential Information will survive for the **Term of Confidentiality (1 year from the Effective Date, but in the case of trade secrets until Confidential Information is no longer considered a trade secret under applicable laws)**, despite any expiration or termination of this MNDA.

Return or Destruction of Confidential Information. Upon expiration or termination of this MNDA or upon the Disclosing Party's earlier request, the Receiving Party will: (a) cease using Confidential Information; (b) promptly after the Disclosing Party's written request, destroy all Confidential Information in the Receiving Party's possession or control or return it to the Disclosing Party; and (c) if requested by the Disclosing Party, confirm its compliance with these obligations in writing. As an exception to subsection (b), the Receiving Party may retain Confidential Information in accordance with its standard backup or record retention policies or as required by law, but the terms of this MNDA will continue to apply to the retained Confidential Information.

Proprietary Rights. The Disclosing Party retains all of its intellectual property and other rights in its Confidential Information and its disclosure to the Receiving Party grants no license under such rights.

Disclaimer. ALL CONFIDENTIAL INFORMATION IS PROVIDED "AS IS", WITH ALL FAULTS, AND WITHOUT WARRANTIES, INCLUDING THE IMPLIED WARRANTIES OF TITLE, MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE.

Governing Law and Jurisdiction. This MNDA and all matters relating hereto are governed by, and construed in accordance with, the laws of the State of **[Governing Law]**, without regard to the conflict of laws provisions of such **[Governing Law]**. Any legal suit, action, or proceeding relating to this MNDA must be instituted in the federal or state courts located in **[Jurisdiction]**. Each party irrevocably submits to the exclusive jurisdiction of such **[Jurisdiction]** in any such suit, action, or proceeding.

Equitable Relief. A breach of this MNDA may cause irreparable harm for which monetary damages are an insufficient remedy. Upon a breach of this MNDA, the Disclosing Party is entitled to seek appropriate equitable relief, including an injunction, in addition to its other remedies.

General. Neither party has an obligation under this MNDA to disclose Confidential Information to the other or proceed with any proposed transaction. Neither party may assign this MNDA without the prior written consent of the other party, except that either party may assign this MNDA in connection with a merger, reorganization, acquisition or other transfer of all or substantially all its assets or voting securities. Any assignment in violation of this Section is null and void. This MNDA will bind and inure to the benefit of each party's permitted successors and assigns. Waivers must be signed by the waiving party's authorized representative and cannot be implied from conduct. If any provision of this MNDA is held unenforceable, it will be limited to the minimum extent necessary so the rest of this MNDA remains in effect. This MNDA (including the Cover Page) constitutes the entire agreement of the parties with respect to its subject matter, and supersedes all prior and contemporaneous understandings, agreements, representations, and warranties, whether written or oral, regarding such subject matter. This MNDA may only be amended, modified, waived, or supplemented by an agreement in writing signed by both parties. Notices, requests and approvals under this MNDA must be sent in writing to the email or postal addresses on the Cover Page and are deemed delivered on receipt. This MNDA may be executed in counterparts, including electronic copies, each of which is deemed an original and which together form the same agreement.

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